

Terms of Service

Aperio — Photo Gallery Application

Effective Date: 15th July 2026

This Terms of Service ("Agreement") is a legal agreement between you ("User" or "you") and Aperio's Team ("Company", "we", "our"), governing your access to and use of the Aperio mobile application (the "App"), which allows users to capture, upload, organise, and share photographs in personal and shared galleries.

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE USING THE APP. BY DOWNLOADING, INSTALLING, OR ACCEPTING THESE TERMS, YOU AGREE TO BE BOUND BY THIS AGREEMENT. IF YOU DO NOT AGREE, DO NOT USE THE APP.

1. Acceptance of Terms

- 1.1** By downloading, installing, or using the App, you acknowledge that you have read, understood, and agree to be bound by this Agreement and any policies referenced within it, including our Privacy Policy.
- 1.2** If you do not agree to these terms, you must not download, install, or use the App.
- 1.3** We may update this Agreement from time to time in accordance with Section 8. Continued use of the App after changes take effect constitutes acceptance of the revised terms.

2. Eligibility and Use of the App

- 2.1** You must be at least 13 years old to create an account and use the App. Users under 18 must have the consent of a parent or legal guardian.
- 2.2** The App allows you to capture photographs using your device camera, import images from your device gallery, organise them into albums, and optionally share albums with other users or publicly.
- 2.3** You agree to use the App only for lawful purposes and in compliance with all applicable laws and regulations.
- 2.4** You are solely responsible for the accuracy, legality, and appropriateness of any photograph or content you capture, upload, or share through the App.

3. Account Registration

- 3.1** Certain features of the App, such as cloud backup and shared albums, require you to create an account.
- 3.2** You are responsible for maintaining the confidentiality of your login credentials and for all activity that occurs under your account.
- 3.3** You agree to provide accurate, current, and complete information during registration and to keep such information up to date.
- 3.4** You must notify us promptly at aperio.support@gmail.com if you become aware of any unauthorised use of your account.

4. User Content, Ownership and License

- 4.1** You retain full ownership of the photographs and other content you upload to the App ("User Content"). We do not claim ownership over your User Content.

4.2 By uploading User Content, you grant Aperio's Team a limited, non-exclusive, royalty-free, worldwide licence to host, store, reproduce, and display that content solely for the purpose of operating, maintaining, and improving the App (for example, generating thumbnails, backups, and shared-album previews).

4.3 If you choose to share an album publicly or with other users, you are responsible for ensuring you have the necessary rights and permissions to do so, including the consent of any identifiable individuals in your photographs.

4.4 You may delete your User Content at any time. Upon deletion, we will remove it from active systems within a reasonable period, subject to residual copies retained in backups as described in our Privacy Policy.

4.5 We do not sell your photographs or User Content to third parties.

5. Acceptable Use

When using the App, you agree that you will not upload, share, or store content that:

- Infringes another person's intellectual property, privacy, or publicity rights;
- Is unlawful, defamatory, obscene, or sexually exploitative, including any content involving a minor;
- Depicts or promotes violence, hate speech, harassment, or discrimination;
- Contains malware or attempts to disrupt or gain unauthorised access to the App or other users' accounts;
- Impersonates another person or misrepresents your affiliation with any person or entity.

We reserve the right to remove any content that violates this Agreement and to suspend or terminate accounts responsible for repeated or serious violations.

6. Content Moderation and Removal

6.1 We may review, and where necessary remove, reported or flagged content that appears to violate this Agreement or applicable law.

6.2 We are not obligated to monitor all User Content, and we are not responsible for content posted by users, including content shared in public or shared galleries.

6.3 You may report content you believe violates this Agreement by contacting us at **aperio.support@gmail.com**.

7. Intellectual Property

7.1 The App itself, including its design, interface, logos, icons, and underlying software, is owned by Aperio's Team and its licensors and is protected by applicable intellectual property laws.

7.2 Except for your own User Content, you may not copy, modify, distribute, reverse-engineer, or create derivative works from any part of the App without our prior written consent.

8. Privacy and Data Collection

8.1 The App may request permission to access your device camera, photo gallery, and storage in order to provide its core functionality.

8.2 By using the App, you agree to the collection, use, and disclosure of your personal information, including photographs and associated metadata (such as location and timestamp data embedded in image files), as described in our Privacy Policy.

8.3 We encourage you to review our Privacy Policy, available within the App, for full details on how your data is collected, used, and protected.

9. Third-Party Services

9.1 The App may use third-party services for functions such as cloud storage, backup, analytics, or crash reporting. Your use of these features is also subject to the relevant third party's own terms and privacy policy.

9.2 We are not responsible for the practices or content of any third-party service integrated with the App.

10. Disclaimers and Limitation of Liability

10.1 The App is provided "as is" and "as available" without warranties of any kind, whether express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement.

10.2 To the extent permitted by law, in no event shall Aperio's Team be liable for any indirect, incidental, consequential, special, or punitive damages, including loss of photographs, data, or goodwill, arising out of or in connection with your use of the App.

10.3 Nothing in this Agreement excludes or limits any consumer guarantees or rights that cannot lawfully be excluded under applicable law, including the Australian Consumer Law.

10.4 We strongly recommend maintaining independent backups of any photographs important to you.

11. Modification and Termination

11.1 Aperio's Team reserves the right to modify or update this Agreement at any time, effective upon posting the revised terms within the App.

11.2 We may suspend or terminate your access to the App at any time, with or without notice, for conduct that violates this Agreement or is otherwise harmful to other users or the App.

11.3 You may stop using the App and delete your account at any time. Upon termination, the licence granted in Section 4.2 will end, subject to residual backup copies as described in our Privacy Policy.

12. Governing Law and Jurisdiction

12.1 This Agreement shall be governed by and construed in accordance with the laws of New South Wales, Australia.

12.2 Any disputes arising out of or in connection with this Agreement shall be submitted to the exclusive jurisdiction of the courts of New South Wales, Australia.

13. Contact Information

If you have any questions or concerns regarding this Agreement, please contact us at **aperio.support@gmail.com**.

— End of Terms of Service —